

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JESSICA PEREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, SERGEANT
NANHAO CHEN, POLICE OFFICER LUIS
ORTIZ, JOHN DOE 1 and JOHN DOE 2,

Defendants.
-----X

Date Filed:

Index No.

SUMMONS

Plaintiff designates
Bronx County as the place
of trial.

The basis of the venue
is where the tort arose and
where plaintiff resides,

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
December **21**, 2016

Yours, etc.

_____/S/_____
Chukwuemeka Nwokoro
Nwokoro & Scola, Esquires.
Attorneys for the Plaintiff
44 Wall Street- Suite 1218
New York, NY 10005
(212) 785-1060

DEFENDANTS ADDRESS:

Corporation Counsel of the City
Of New York
100 Church Street
New York, NY 10007

Sergeant Nanhao Chen
NYPD-42nd Precinct
830 Washington Avenue
Bronx, NY 10451

Police Officer Luis Ortiz
NYPD-42nd Precinct
830 Washington Avenue
Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JESSICA PEREZ,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, SERGEANT
NANHAO CHEN, POLICE OFFICER LUIS
ORTIZ, JOHN DOE 1 and JOHN DOE 2,

Defendants.
-----X

Plaintiff, JESSICA PEREZ, by his attorneys, NWOKORO & SCOLA, ESQUIRES,
respectfully alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is an action for damages sustained by the plaintiff, Jessica Perez, as a result of the violation of her constitutional rights and other rights under state and federal law by New York City Police Officers.
2. As described in this complaint, on September 8, 2015, plaintiff was falsely arrested, falsely imprisoned, maliciously prosecuted, suffered abuse of process, assaulted, harassed, and physically violated by the individual defendants acting within the scope of their employment, under color of state law, and with the authority of the City of New York (the City) and the New York City Police Department (the NYPD).

3. All individually named defendants herein are or were officers assigned to the NYPD's 42nd Precinct in the Bronx County at all material times.
4. At all times mentioned, Plaintiff was a resident of Bronx County, City and State of New York.
5. Plaintiff seeks compensatory and punitive damages, attorneys fees and costs, and such other and further relief as the Court deems fit.

JURISDICTION

6. The causes of action arose within the State of New York, in Bronx County.

VENUE

7. Plaintiffs are residents of Bronx County.

JURY DEMAND

8. A jury trial is hereby demanded.

PARTIES

9. At all times hereinafter mentioned, plaintiff PEREZ is a natural person residing in the Bronx.
10. At all times hereinafter mentioned, defendant CHEN was a police officer, employee and agent of the City, acting within the scope of his employment and under color of state law. Defendant CHEN is sued in his official and individual capacity.
11. At all times hereinafter mentioned, defendant ORTIZ was a police officer, employee and agent of the City, acting within the scope of his employment and under color of state law. Defendant ORTIZ is sued in his official and individual capacity.

12. Defendants John Does 1 and 2 are police officers assigned to the 42nd Precinct of the NYPD who were involved in the arrest and imprisonment of the plaintiff on September 8, 2015. Defendant John Doe 1 is described as a white male, kind of big, who partnered with Sergeant Chen in arresting the plaintiff. John Doe 2 is one of the at least four officers involved in the arrest of the plaintiff on 9-8-15 but no description of John Doe 2 is currently known to the plaintiff.
13. At all times hereinafter mentioned, the NYPD was an agency of the City.
14. At all times hereinafter mentioned, defendant the CITY, was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
15. At all times hereinafter mentioned, defendant the CITY was the employer of defendants Chen, Ortiz, and John Does 1 and 2.
16. At all times hereinafter mentioned, defendant the CITY is responsible for the actions of defendants Chen, Ortiz, and John and Jane Does 1 and 2.

NOTICE OF CLAIM

17. On May 17, 2016, a Notice of Claim was duly and timely served on the Comptroller of the City of New York.
18. At least 30 days has elapsed since the notice of claim was served.
19. The plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-h of the General Municipal Law and/or the Public Authorities Law.

20. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereon has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.

STATEMENT OF FACTS

21. On September 8, 2015, at around 11:30 p.m., plaintiff Jessica Perez was stopped in the driver's seat of her vehicle, double parked in front of a grocery store located at the corner of East 169th Street, and Boston Road, in the Bronx, while her 13 year old son, L.H., was in the grocery store picking up milk. In an infant's safety car seat in the back of the vehicle, was plaintiff's two year old daughter, J.R., along with plaintiff's Seventeen years old daughter, I.H., Plaintiff was headed to apartment at 747 East 168th Street, Bronx, New York, which was approximately one block away.
22. While plaintiff was stopped waiting for her son, two police officers, upon information and belief, defendant ORTIZ and John DOE 2, approached the vehicle and asked plaintiff for her driver's license and registration. The defendants took plaintiff's documents and went back to their patrol vehicle for about ten minutes, then returned and issued the plaintiff a summons for being illegally parked. Plaintiff took the summons and proceeded to drive home, which was a short distance away.

23. Plaintiff drove to the front of her apartment building, then slowed down and stopped preparatory to turning into the driveway and parking lot. At this point, she was suddenly approached by two police officers, upon information and belief, defendants CHEN and John DOE 2, with guns drawn and pointed straight at the plaintiff and her children including the infant sitting in the car. Defendant John DOE 2 ordered plaintiff to get out of the car, while defendant CHEN pushed the door closed on L.H. as he was trying to exit the vehicle. The defendants ordered the children to stay in the vehicle.
24. Plaintiff calmly inquired of the defendants as to why she was being stopped again and was told by the defendants that they had approached her with guns drawn and ordered her out of her vehicle because they saw drive through a red light. The plaintiff stated that she did not drive through a red light and that she didn't stop because her brakes are low, and immediately received verbal abuse from defendant John DOE 2 who appeared to be irate. Defendant John Doe 2 shouted at the plaintiff and called her a bad mother and a reckless mother.
25. After initially ordering plaintiff out of the vehicle, defendant Chen orders plaintiff to get back into the vehicle, and wait. Plaintiff complied and waited for three minutes while one of the defendants, upon information and belief, defendant Ortiz, was called by defendants Chen and John Doe 1, and instructed by them to arrest the plaintiff. After three minutes, defendant Chen again ordered plaintiff out of the car and walks her to the rear of the vehicle where she is arrested and placed in handcuffs by defendant Ortiz.

26. The defendants physically manhandled the plaintiff and placed her in handcuffs. Leaving her children, including the infant J.R., in the vehicle, and without allowing the plaintiff to transfer her charges to the care of another adult, the defendants transported plaintiff to the premises of the 42nd Precinct of the NYPD. Before she was removed from the vehicle, defendant John DOE 2, told the plaintiff that he was going to make sure that ACS took her children away because she was a bad mother and then he stated “get the fuck out of my car”.
27. At the 42nd Precinct, plaintiff was placed in a filthy cell from 11:50 p.m. on September 8, 2015, to 3:30 p.m. the next day. During this period, Ms. Perez was forced to use a dirty toilet without toilet paper and with the door open for everyone in the 42nd Precinct to see and she was given neither food nor drink for the entire period that she was in the precinct. On September 9, 2015, at approximately 3:30 p.m., plaintiff was placed in shackles and transported to Central Booking in Bronx County, and there was placed in a filthy and cold prison cell populated by convicted felons and other people in custody. On September 10, 2015 at approximately 7:30 p.m., plaintiff Perez was released on her own recognizance and issued an order of protection in favor of her daughter prohibiting her from driving with her toddler in the car.
28. As a result of these incidents and her arrest, plaintiff Jessica Perez received multiple false charges precipitated by the defendants and supported by lies, exaggerations and outright fabrications on the part of the defendants. Plaintiff was issued a ticket for illegally parking although she was not parked but was a

stopped vehicle. Plaintiff was received a charge from the Administration of Children's Services (ACS) under Case Number 26195273, for endangering the safety of a minor although plaintiff did no such thing and in fact, it was the defendants who left plaintiff's infant children apparently un-attended. Plaintiff was also falsely charged with speeding/reckless driving.

29. Although plaintiff was calm and respectful during the two police stops and her subsequent arrest, defendant ORTIZ wrote in the police Arrest Report that "Ms. Perez was screaming and out of control" and that Ms. Perez also stated *"I just got a fucking ticket, that's why I am driving like that. My brakes don't work. I don't care if I'm putting the kids in danger. Why don't you look for guns and rapists. That's my daughter J.P., her date of birth is ..*"*. This was a complete fabrication by Defendant Ortiz as plaintiff never made those statements and was calm throughout her ordeal. Also, plaintiff does not have a daughter named J.P.
30. Defendant Chen falsely stated or caused to be stated in the Arrest Report that plaintiff was driving at 60 miles per hour in a 25 miles per hour zone and made a left turn through a steady red light without stopping or slowing and was screaming and out of control. This was a fabrication on the part of defendant Chen.
31. Defendants John Doe 1 and Chen falsely accused plaintiff of endangering the safety of her infant daughter by speeding and running a red light and, both defendants initiated and or precipitated unfounded charges of child endangerment from the ACS against the plaintiff.

32. In making these false allegations against the plaintiff, Sergeant Chen and John Doe 1, were motivated by malice and a desire to injure the plaintiff. Sergeant Chen and John Doe 1, had previous unpleasant interactions with the plaintiff, as Sergeant Chen and John Doe 1, were a part of a squad of Detectives from the 42nd Precinct, that include Detective David Terrell, and Detective Daniel Brady, who had arrested plaintiff's infant son, P.H., multiple times prior to September 8, 2015, causing plaintiff to go to the 42nd Precinct in order to bring home her infant son aforesaid and leading to plaintiff having to, on occasion, challenge the aforesaid detectives, including Sergeant Chen, regarding their constant arrests and harassments of her son P.H., therefore, prior to her arrest on September 9, 2015, defendants Chen and John Doe 1 knew very well who they were arresting and were familiar with the identity of the plaintiff.
33. That defendants Chen, Ortiz and John Does 1 and 2 all completed arrest paperwork in which they swore in part that the plaintiff had committed a crime or offense.
34. That the factual claims by said defendants were materially false and defendants knew it to be false at the time they first made it, and every time thereafter, when they repeated it.
35. That defendants Chen, Ortiz and John Does 1 and 2 forwarded these allegations to the Bronx County District Attorney (BCDA) in order to justify the arrest and to persuade the BCDA to commence plaintiff's criminal prosecution.

36. That defendants Chen, Ortiz and John Does 1 and 2 also forwarded these allegations to the Administration of Children's Services in order to persuade the prosecutor for that agency to commence plaintiff's prosecution for child endangerment and have plaintiff declared an unfit mother in accordance with the verbal threat issued to the plaintiff by defendant John Doe 1.
37. That as a direct result of these false allegations by the defendants, the plaintiff was criminally charged for driving offenses; was also charged by the ACS with endangering her child; and was issued an order of protection prohibiting her from driving with her infant daughter.
38. That defendants Chen, Ortiz and John Does 1 and 2 intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the other individual defendants, who engaged in the misconduct herein alleged, as required.
39. The arrest of the plaintiff on or about September 8, 2015, was without probable cause.
40. That the said arrest was excessive and extreme even if the plaintiff had engaged in the conduct falsely alleged by the defendants, which the plaintiff had not.
41. The said arrest was motivated by malice and a desire on the part of the defendants to exercise undue power and influence over the plaintiffs.
42. The said arrest was motivated by malice and personal animus against the plaintiff by the defendants rather than the violation by the plaintiff of any enforced rule or law.

43. At no time prior to or during the above events was there probable cause to arrest the plaintiff, nor was it reasonable for the defendants to believe that probable cause existed.
44. That plaintiff was caused to attend court multiple times to defend the criminal and child endangerment charges against her.
45. That on November 20, 2015, the ACS case brought against plaintiff for child endangerment was dismissed and the ACS found that there was “no credible evidence found to believe that the children have been abused or maltreated, therefore the report has been determined unfounded”.
46. That on January 21, 2016, the order of protection against Ms. Perez in favor of her infant daughter was vacated by the court.
47. On October 29, 2015, the summons number 4425913903 issued to the plaintiff for illegal parking was dismissed by the court.

1ST CAUSE OF ACTION
(Assault and Battery)

48. Plaintiff re-alleges all the allegations contained in all previous paragraphs of this complaint with full force and effect as though set forth at length herein.
49. On or about September 8 2015, at 747 East 168th Street, Bronx, New York, the defendants, Chen, Ortiz and John Does 1 and 2, jointly and severally in their capacity as police officers wrongfully touched, grabbed, handcuffed and seized the plaintiff in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the defendants have legal

cause to grab, handcuff, seize or touch the plaintiff, nor did the plaintiff consent to this illegal touching, nor was it privileged by law.

2ND CAUSE OF ACTION
(False Arrest)

50. As and for a second cause of action: Plaintiff repeats and re-alleges all the allegations contained all previous paragraphs of this complaint, with full force and effect as though set forth at length herein.
51. On or about September 8, 2015, at 747 East 168th Street, Bronx, New York defendants Chen, Ortiz and John Does 1 and 2, jointly and severally without any warrant, order or other legal process, and without any legal right, wrongfully and unlawfully arrested the plaintiff, restrained her and her liberty and then took her into custody. The plaintiff was thereafter held in custody over the course of approximately 3 days until she was released on or about September 10, 2015. The defendants intentionally confined the plaintiff without her consent and the confinement was not otherwise privileged by law, and at all times, the plaintiff was conscious of her confinement.

3RD CAUSE OF ACTION
(False Imprisonment)

52. Plaintiff repeats and re-alleges all the allegations contained in all previous paragraphs of this complaint with full force and effect as though set forth at length herein.
53. On or about September 8, 2015, at 747 East 168th Street, Bronx, New York defendants Chen, Ortiz and John Does 1 and 2, jointly and severally, without

any valid warrant, order or legal process and without any legal right, wrongfully and unlawfully imprisoned the plaintiff, restrained her liberty and then took her into custody and caused her to be incarcerated as a detainee in New York City's Correctional Facility. The plaintiff was thereafter held in custody for 3 days before she was released. The defendants intentionally confined the plaintiff without her consent and the confinement was not otherwise privileged by law and at all times, plaintiff was conscious of her confinement.

4TH CAUSE OF ACTION
(Malicious Prosecution)

54. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in all previous paragraphs of this complaint with full force and effect as though set forth at length herein.
55. From on or about September 8, 2015, defendants Chen, Ortiz and John Does 1 and 2, jointly and severally, maliciously prosecuted plaintiff for child abuse and neglect/endangerment of the safety of a minor, although they had no lawful reason to believe that she in fact committed those crimes they intentionally prosecuted her for those crimes with an intent to unlawfully punish, intimidate and harass the plaintiff, and thereby they caused plaintiff severe damages including loss of liberty, and severe mental suffering.
56. On or about November 20, 2015, the allegations of child abuse/child neglect/child maltreatment/child endangerment, were determined to be unfounded and dismissed.

5TH CAUSE OF ACTION
(Against individually named police officers for Malicious Abuse of Process)

57. Plaintiffs repeat and re-allege each and every allegation set forth above as though fully set out at length herein.
58. By the conduct and actions described above, defendants Chen, Ortiz and John Does 1 and 2, employed regularly issued process against plaintiff compelling the performance or forbearance or prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to the plaintiff, which were outside the legitimate ends of the process.
59. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the infant plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
60. As a direct and proximate result of the misconduct and abuse of authority stated above, the plaintiff sustained the damages alleged herein.

6TH CAUSE OF ACTION
(Against individually named police officers for constitutional violations)

61. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in all previous paragraphs of this complaint with full force and effect as though set forth at length herein.
62. Defendants Chen, Ortiz and John Does 1 and 2, were at all times relevant, duly appointed and acting officers of the City of New York's Police Department.
63. At all times mentioned herein, said police officers were acting under color of law, to with: the statutes, ordinances, regulations, policies, customs and usage of the State of New York, and/or City of New York.
64. Plaintiff Jessica Perez is and was at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 U.S.C. Section 1983.
65. The defendant the CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
66. On or about September 8, 2015, the defendants, while effectuating the seizure of the plaintiff did search, seize, assault and commit a battery and grab the person of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested,

unlawfully imprisoned and maliciously prosecuted without the defendants possessing probable cause to do so.

67. The above action of the Defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution: a) freedom from assault to her person; b) freedom from battery to her person; c) freedom from illegal search and seizure; d) freedom from false arrest; e) freedom from malicious prosecution; f) freedom from the use of excessive force during the arrest process; and g) freedom from unlawful imprisonment.
68. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
69. The direct and proximate result of the Defendant's acts are that the plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to her detriment.

7TH CAUSE OF ACTION

Vicarious Liability of the City of New York for State Law Claims

70. Plaintiff re-alleges and incorporates the allegations set forth in each preceding paragraph as if fully set forth herein.
71. The conduct of defendants Chen, Ortiz and John Does 1 and 2 alleged herein occurred while they were on duty, and or in uniform, in and during the course and scope of their duties and functions as New York City police officers, and

while they were acting as agents, officers, servants and employees of the defendant City of New York. As a result, the City of New York is liable to the plaintiff pursuant to the State common law doctrine of respondeat superior.

8TH CAUSE OF ACTION
(Against individually named police officers for Intentional and Negligent Infliction of Emotional Distress)

72. Plaintiffs repeat and re-allege each and every allegation set forth above as though fully set forth at length herein.
73. By the actions described above, defendants Chen, Ortiz and John Does 1 and 2, engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff.
74. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated their statutory and common law rights as guaranteed by the laws and constitution of the State of New York.
75. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages hereinbefore alleged.

9TH CAUSE OF ACTION
(Against individually named police officers for Negligence)

76. Plaintiffs repeat and re-allege each and every allegation set forth above as though fully set forth at length herein.

77. The defendants Chen, Ortiz, and John Does 1 and 2, jointly and severally, negligently caused injuries, emotional distress and damage to plaintiff.
78. The acts and conducts of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
79. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

10TH CAUSE OF ACTION
**(Against the City for Negligent Hiring,
Screening, Retention Supervision and Training)**

80. Plaintiffs repeat and re-allege each and every allegation set forth above as though fully set forth at length herein.
81. Defendant, the City, through its agency and department, the NYPD, owed a duty of care to plaintiffs to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiffs or to those in like situations would probably result from the foregoing conduct.
82. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.
83. Upon information and belief, defendant, the City, knew or should have known through the exercise of reasonable diligence that the individual defendants were dangerous or potentially dangerous.

84. Defendant the City's negligence in screening, hiring, training, disciplining and retaining these defendants proximately caused plaintiff's injuries.
85. By the actions described above, defendants Chen, Ortiz, John Doe 1 and John Doe 2, engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiffs.
86. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiffs and violated their statutory and common law rights as guaranteed by the laws and constitution of the State of New York.
87. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

11th CAUSE OF AGAINST THE CITY OF NEW YORK
(Monell Claim)

88. Plaintiff incorporates, repeats and re-alleges all of the allegations contained all previous paragraphs with full force and effect as though set forth at length herein. This cause of action is brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the United States Constitution. It applies to the City of New York and police officers sued in their official capacity and should be characterized as a "Monell" claim).
89. Defendant CITY OF NEW YORK, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search of individuals warrant and where an

individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

90. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
91. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking: Probable cause must be present before an individual such as the plaintiff herein can be arrested; Excessive force cannot be used against an individual who does not physically resist arrest; an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
92. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no

disciplinary actions for their failure to take proper or prudent steps in this case.

93. To demonstrate a de facto policy of unconstitutional dimension, one might only look at the stop and frisk program initiated by former police commissioner Raymond Kelly and continued by ex- police commissioner William Bratton.
94. Upon information and belief, on or before March 22, 2013, the City, the NYPD and the Police Commissioner had instituted a highly aggressive “stop and frisk” program or policy that was carried out by its police officer employees, including named defendant officers.
95. In the decade since Police Commissioner Kelly was appointed, the number of reported annual “street stops” rose from 97,000 in 2002 to 684,330 times in 2011. Upon information and belief, said rise is due to the policies, directives and procedures implemented or approved by the City, and/or the police commissioner.
96. Upon information and belief, as part of its Stop and Frisk Program, the City, the police commissioner and the NYPD, provide multiple levels of training that covered Stop and Frisk procedures. That includes, but is not limited to, a workshop on Stop and Frisk, videos about the law of reasonable suspicion, patrol guidelines, operational memorandum and ongoing training after graduating from the Police Academy.
97. Upon information and belief, this program, hereinafter referred to as “stop and frisk” disproportionately targeted minorities, males and/or youths for stop,

question and/or frisks, resulting in the excessive use of force disproportionately against minorities, and violated the constitutional rights of citizens of New York City, including citizens residing within the confines of Bronx County.

98. In the matter of David Floyd et al, v. City of New York, et al, 283 FRD 153, United States District Court, Southern District of New York, Justice Scheindlin, stated that “it is indisputable that the NYPD has an enormous stop and frisk program. There were 2.8 million documented stops between 2004 and 2009. These stops were made pursuant to a policy that is designed, implemented and monitored by the NYPD administration. (Order Page 12).
99. Statistical evidence further shows that pursuant to the NYPD stop and frisk policies and procedures, a great majority of civilians who were subjected to stop, question and/or frisk had not committed any crime, and that the NYPD engaged in said actions without reasonable suspicions of criminality. Further more, statistics show that Blacks and Latinos were disproportionately targeted for stops, summons, arrests and excessive use of force.
100. Upon information and belief, it was statistically revealed that of the reported stops and frisks conducted by the NYPD between 2004 and 2009, officers “suspicions” of criminality was wrong nearly 9 out of 10 times.
101. Upon information and belief, the City, NYPD, and the police commissioner were long aware of the racial disparity of police stop and frisks. In 2007, the NYPD commissioned a study through the Rand Center on Quality Policing to study their stop, question and frisk patterns and practices. The study found